

TENTATIVE RULING FOR JUNE 10, 2026

Department R12 - Judge Kory Mathewson

J.J; Melissa Jennings v. Chino Valley Unified School District, et al – CIVRS2400295

Motion: Demurrer

Movant: Defendant County of Riverside

Respondent: Plaintiffs J.J. (minor through guardian ad litem, Oscar Acosta) and Melissa Jennings

RULING: Demurrer is OVERRULED as to COAs: 1, 3, 5;

Demurrer is SUSTAINED, without leave to amend, as to COAs: 2, 4, 6.

Defendant County of Riverside - to provide Order(s) and give Notice.

Procedurally, Defense Counsel telephonically met and conferred with Plaintiffs' Counsel. (Poteet Decl. at ¶2.)

Demurrer based on Uncertainty

Defendant Riverside argues that the TAC is uncertain because it fails to plead the causes of action with the required specificity. A demurrer predicated on uncertainty (Code Civ. Proc., §430.10, subd. (f)) is generally sustained when the complaint is unfairly vague or so ambiguous or unintelligible that the defendant cannot reasonably respond or determine the issues. (*Hoary v. Mali's of Calif. Inc.* (1993) 14 Cal.App.4th 612, 616.) Nevertheless, "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Ibid.*) Thus uncertainty is a ground to hold the claims are not adequately stated, and not that they are uncertain.

The causes of action and issues plead against Defendant are ascertainable as are the theories plead against it. Therefore, the Demurrer is overruled on uncertainty grounds.

Government Claims Act Compliance

Defendant Riverside argues that Plaintiff fails to plead compliance with the Government Claims Act. To pursue a claim against a public entity, the plaintiff must comply with the Claims Act, and the failure to do so will result in the loss of any cause of action against the public entity. (Gov. Code, §§945.4; *Shirk v. Vista Unified School Dist.* (2007) 42 Cal.4th 201, 209; *Willis v. City of Carlsbad* (2020) 48 Cal.App.5th 1104, 1118.)

The Third Amended Complaint (TAC) alleges compliance, i.e., Plaintiffs timely presented separate claims to Defendants by mail on February 9, 2024, and filed their action less than 6 months after receiving rejection of their government claims (¶¶151-52).

In pleading compliance, Plaintiffs make a typographical error by stating they complied per Government Code section 900915.4, versus 915.4. Contrary to Defendant's contention, the typographical error does not sufficiently support Plaintiffs failure to plead compliance. Defendant cites to no statute or case law that dictates pleading compliance with the Claims Act requires citing to any statute. Thus, even if the statute is typographically mistyped, it does not alter the factual allegations of compliance remaining. Consequently the Demurrer on grounds of failure to plead compliance with the Claims Act is overruled.

1st-2nd causes of action: Negligence / Negligent Hiring/Supervision/Retention

Defendant Riverside argues that no statutory basis for its liability is identified. Furthermore, the negligence and negligent supervision/retention causes of action are not specifically plead against it because no authority exists for a private person to enforce a restraining order, and it complied with the law to confirm the existence of a protective order and abduction within San Bernardino.

A public entity may be liable for an injury directly resulting from its own conduct or omission, but only as provided by statute. (Gov. Code, §815; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1127, 1131 [“*Zelig*”].) Additionally, a public entity also can be liable under the vicarious liability theory for the acts and omissions of its employees or independent contractors who act within the course and scope of their employment or agency if the act or omission would give rise to a cause of action against the employee or agent. (Gov. Code, §§815.2, subd. (a), 815.4.) The statute or enactment establishing a basis for liability must be identified. (*Searcy v. Hemet Unified School District* (1986) 177 Cal.App.3d 792, 802.)

Furthermore, a plaintiff must plead the governmental entity’s statutory violation with particularity. (*Zipperer v. County of Santa Clara* (2005) 133 Cal.App.4th 1013, 1020; *Susman v. Los Angeles* (1969) 269 Cal.App.2d 803, 809.)

In the negligence and negligent supervision/retention causes of action, Plaintiffs allege Riverside’s liability flows from the actions or omissions of its employees or independent contractors per Government Code sections 815.2 and 815.4 (¶¶81-85, 92, 112-16, & 119).

The negligence cause of action is founded on Riverside’s deputies negligently controlling, managing, or maintaining their operations, which led to Plaintiffs’ injuries and damages, Riverside’s deputies failed to enforce a valid restraining order (¶¶90, 95-97).

Riverside may argue it owed no duty to enforce a restraining order, but that goes to the merits of the allegations, and not whether a negligence claim is pled. In construing the allegations, Plaintiffs plead under a vicarious liability theory that Riverside may be liable for its deputies failing to perform a duty to enforce the law and protect a child who had been abducted. Whether they hold such a duty, breached such a duty, and caused Plaintiffs’ injuries is not determined on demurrer. Therefore, the Demurrer to the 1st cause of action is overruled.

The TAC alleges Defendant Riverside failed to properly hire, screen, train, or supervise staff to carry out their duties competently (¶¶110-11, 118). Negligent retention/supervision is a direct liability theory against an employer. (*Diaz v. Carcamo* (2011) 51 Cal.4th 1148, 1159; *Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815.) The Courts have found that a public school district may be vicariously liable for the acts and omissions of its administrators in hiring, retaining, or failing to supervise one to whom knew had dangerous propensities to students. (*C.A. v. Williams S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 873-75; *Roe v. Hesperia Unified School District* (2022) 85 Cal.App.5th 13, 25-26.)

However, without a special relationship between the public entity’s employees/agents and a third party, the public entity is not going to be subject to vicarious liability for the

negligent hiring, retention, or supervision by its employees over that third party. (*de Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 249-55.)

Here, Plaintiffs do not plead any special relationship between Riverside's hierarchy and JJ, Jennings, or the alleged abductor. They further do not plead any duty by Riverside supervising officers toward JJ and Jennings in responding to a call for assistance. They also do not plead how any duty in retaining and supervising deputies was breached by a supervising officer that caused JJ and/or Jennings' injuries. Rather, the allegations generically state that the negligent retention and supervision of officers led to Plaintiffs' injuries. This is insufficient in pleading, with particularity, the basis of Riverside's vicarious liability for the acts of supervising officers in retaining and supervising a deputy.

This is the second review of a demurrer challenge by Riverside. Plaintiffs offers no facts that they could plead to support a special relationship existed between Riverside's hierarchy and them to establish a predicated legal basis to rely on Government Code sections 815.2 and 815.4, or to support vicarious liability against Riverside for the acts of supervising officers in retaining or supervising other deputies in performing their duty to enforce a protective order.

Therefore, the Demurrer to the 2nd cause of action is sustained, without leave to amend.

3rd cause of action: Negligence Per Se

In a claim for negligence per se,¹ the plaintiff must establish that (a) the defendant(s) violated a statute, ordinance, or regulation of a public entity, (b) the violation caused an injury, (c) the injury resulted from an occurrence in which the law was designed to prevent, and (d) the person suffering the injury was one of the classes of persons whose protection the law was adopted. (Evid. Code, §669; *Urhausen v. Longs Drugs Stores Cal., Inc.* (2007) 155 Cal.App.4th 254, 267.)

Defendant Riverside argues that the statutory basis for the claim is not stated, and the claim is not particularly plead. The negligence per se cause of action seeks to impose vicarious liability on Defendant Riverside under Government Code section 815.2 and 815.4 for the acts of its deputies in violating Government Code section 1222 and Family Code section 6383 and 6457 (§§124-25, 127).

As discussed below, for Riverside to be liable for the acts of its employees/agents, the employee/agent must be subject to liability for violating the cited statutes. Under the analysis of the 5th and 6th causes of action, viability exists under Family Code section 6383, but not Government Code section 1222. Furthermore, as per a prior Demurrer analysis, Family Code section 6457 is inapplicable because it is within the part concerning recognizing domestic violence orders from Canada. There is no allegation of a Canadian protective order. The Court cannot grant a demurrer to part of a cause of action. The remedy to the inadequately plead or

¹ Negligence per se is not a cause of action but creates an evidentiary presumption that affects the standard of care in a negligence claim. (*Millard v. Biosources, Inc.* (2007) 156 Cal.App.4th 1338, 1353, fn. 2.) For this presumption to be available, an underlying negligence claim must be viable. (*Id.* at p. 1353.)

improper inclusion of Government Code section 1222 and Family Code section 6457 is through a Strike Motion, which Defendant did not file. Therefore, the Demurrer to the 3rd cause of action is overruled.

4th cause of action: Government Code, §1222

Government Code section 1222 states, “Every willful omission to perform any duty enjoined by law upon any public officer, or person holding any public trust or employment, where no special provision is made for the punishment of such delinquency, is punishable as a misdemeanor.” Whether a party can sue for a statutory violation depends on whether the Legislature has manifested an intent to create a private right of action. (*Lu v. Hawaiian Gardens Casino, Inc.* (2010) 50 Cal.4th 592, 596.) The statute must have “clear, understandable, unmistakable terms” that strongly and directly indicate that the Legislature intended to create a private right of action. (*Id.* at p. 597.) Such can be found when the statute expressly states a person has or is liable for violating the statute, or the statute refers to a remedy or a means of enforcing its substantive provisions. (*Ibid.*)

The sole remedy under this statute is criminal in nature. The violator can be found guilty of a misdemeanor. Even if Plaintiffs’ statutory basis for liability is the vicarious liability statutes, the individual deputy must be subject to personal liability before the employing public entity can be vicariously liable. (Gov. Code, §820, subd. (a).) No Riverside deputy could be held civilly liable for violating Government Code section 1222 when it provides no private right of action. Therefore, Riverside’s Demurrer to the 4th cause of action is sustained without leave to amend.

5th cause of action: Family Code section 6383

Defendant Riverside argues that no statutory predicated basis for the violation of this provision is provided.

Similar to the other causes of action, Plaintiffs JJ and Jennings rely on the vicarious liability statutes to impose liability, i.e., Government Code sections 815.2 and 815.4 (§137). Plaintiffs further allege Riverside, via its deputies, failed to comply with this statute when they failed to enforce the criminal protective orders (§§43, 51, 56-57, 62, 136, 138). Like with the 1st cause of action, a Demurrer is not the manner to determine if Riverside deputies were subject to a duty under Family Code section 6383 or breached any duty thereunder. Therefore, the Demurrer to the 5th cause of action is overruled.

6th cause of action: Civil Code, §52

Civil Code section 52 provides the relief for violations of Civil Code sections 51, 51.5, 51.6, 51.7 and 51.9. Defendant Riverside argues that no statutory basis is plead for its liability, and any claim is not plead with required specificity.

Plaintiffs plead Riverside’s liability is predicated upon it being vicariously liable for the acts of its employees or independent contractors per Government Code sections 815.2 and 815.4 (§147). The TAC further pleads that Jennings and JJ have rights guaranteed under the Fourth Amendment, and the California Constitution and laws, including the right to life, liberty, and

parental rights, and free from intimidation and coercion. Riverside's deputies threatened, intimidated, and coerced them, resulting in harm (§§140-42).

Although not cited, Civil Code section 51.7 (the Ralph Act) provides that all persons have the right to be free from any violence or intimidation by threat of violence, committed against their person or property because of their political affiliation, race, color, etc. To prevail on a claim under the Ralph Act, a plaintiff must prove: (i) the defendant committed a violent act or intentionally threatened violence against the plaintiff or his property, (ii) a motivating reason for the defendants' conduct was its perception of the plaintiff's race, color, political affiliation and/or any other protected status defined in Civ. Code §51(b) or (e), (iii) the plaintiff was harmed, and (iv) the defendant's conduct was a substantial factor in causing the plaintiff's harm. (CACI 3023A, 3023B.)

While an individual deputy could not be liable for violating the Ralph Act, the TAC makes no allegations to support that any individual deputy engaged in threats of violence or coercion because of some protective status held by JJ or Jennings. The allegations further fail to particularly plead what were threats or acts of coercion were committed by any Riverside deputy towards Jennings or JJ. Thus, Plaintiffs have failed to adequately set forth a basis to hold Riverside liable for the act of an employee or independent contractor despite being on the TAC with opportunities to amend to plead a claim under the 6th cause of action. Since Plaintiffs have fail to plead the necessary particular facts to support a remedy under Civil Code section 52 on multiple attempts, the Court sustains the Demurrer to the 6th cause of action, without leave to amend.

Dated: June 10, 2026

Judge Kory Mathewson